Pool fencing requirements

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Statistical evidence shows that the majority of drownings in private swimming pools involves children under the age of 5 years. Inadequate pool fencing is a major contributing factor to drownings. Key pool safety requirements in NSW are outlined below.

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Pool fencing laws

The requirements for child-resistant barriers vary depending on when the pool was built and where the pool is located.

There are 3 different Pool Safety Standards that apply in NSW, depending on when the pool was constructed:

- AS 1926-1986, fences and gates for private swimming pools which applies to pools constructed prior to 30 August 2008
- AS 1926.1 - 2007, swimming pool safety, Part 1 safety barriers for swimming pools which applies to pools constructed between 1 September 2008 to 30 April 2013
- AS1926.1 - 2012, swimming pool safety, Part 1 safety barriers for swimming pools constructed after 1 May 2013

Pools built before 1 August 1990

Access to the pool from the house must be restricted at all times. Windows and doors may form part of the barrier, but they must be compliant.

Pools built after 1 August 1990 but before 1 July 2010

The pool must be surrounded by a fence that separates the pool from the house. Some exemptions apply if the pool is part of:

- a very small property (less than 230 square metres)

a very small property (less than 250 square metres)

a large property (2 hectares or over)

a waterfront property.

Pools built from 1 July 2010

All new pools must be surrounded by a fence that separates the pool from the house.

History of NSW Swimming Pool legislation, regulation and pool barrier standards

Pool Build Date	Act	Regulation	Australian Standard
Pre 1 August 1990	*Swimming Pool Act 1992*	Swimming Pools Regulation 1992	Pre 1 August 1990 pools exempted from the standard under section 8 and small, large and waterfront property pools
1 August 1990 to 31 August 2008	*Swimming Pool Act 1992*	Swimming Pools Regulation 1992	AS 1926-1986 Exemptions to the standards for small, large and waterfront properties.
1 September 2008 to 30 June 2010	*Swimming Pool Act 1992*	Swimming Pools Regulation 2008, commenced 1 September 2008.	AS 1926.1-2007
1 July 2010 to 30 April 2013	*Swimming Pool Act 1992* and Amendment Act 2010 & 2012	Swimming Pools Regulation 2008 amended 1 May 2011.	AS 1926.1-2007 Act ends exemptions to the standards for small, large and waterfront properties from 1 July 2010
1 May 2013 onward	*Swimming Pool Act 1992*	Swimming Pools Regulation 2008	AS1926.1-2012
1 September 2018	*Swimming Pools Act 1992*	Swimming Pools Regulation 2018	AS1926.1-2012

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*Adapted from Independent Review of Swimming Pool Barrier requirements for backyards= swimming pools in NSW – Michael Lambert. Sept 2015

> Note: If the swimming pool barrier is modified, altered or rebuilt, then the current *Swimming Pools Act 1992*, Swimming Pools Regulation 2008 and Australian Standard AS1926.1-2012 is applied and previous exemptions cease.

Inflatable pools

Owners of premises with swimming pools, including inflatable swimming pools, must ensure their pools comply with fencing laws. If you own or buy an inflatable swimming pools, observe all warning labels attached to the packaging and product. The warning label information may vary according to the pool's height.

Small inflatable pools under 300mm in height

Inflatable pools under 300mm in height should carry the following warning labels:

Pool owners, parents and carers need to be aware of the potential for drowning even in shallow water. You should always supervise children when they are using these products.

Ensure that the water is kept pure. Water left in inflatable pools for periods of time can become contaminated and cause illness.

Empty the pool and store it safely (away from young children) when it is not in use.

Large inflatable pools 300mm or more in height

Inflatable pools 300mm or more in height should carry the following warning labels:

the same three warnings as for smaller pools (see above) and

pool fencing laws affect this product. Before you buy this pool you should consult your local council.

For large inflatable pools of 300mm or more in height consult your council on fencing requirements, child-resistant barriers and a warning sign display.

Visit the pool safety checklists (http://www.swimmingpoolregister.nsw.gov.au/checklists) page on the NSW Swimming Pool Register for further information.

Spa Pools

If your spa pool does not have a securely fastened, child-resistant structure (such as a door, lid, grille or mesh) preventing access to the spa when not in use, you must install a fence to prevent access to the spa area.

Visit the pool safety checklists (http://www.swimmingpoolregister.nsw.gov.au/checklists) page on the NSW Swimming Pool Register for further information.

Pools under construction

Builders and pool owners have a responsibility to ensure that the construction site for a pool is made secure with a compliant barrier during the construction period, as excavation works may hold water more than 300mm.

The responsibility of the builder finishes with the issuing of a final occupancy certificate at the completion of the works.

However, the occupier of the premises is responsible for the erection and maintenance of a sign that states “this swimming pool is not to be occupied or used”. The sign must be displayed at all times while the pool is under construction and only removed once an occupation certificate has been issued for the pool, or once a certificate of compliance has been issued. This requirement stared from 1 September 2019 Failure to comply with this obligation may lead to a penalty notice being issued.

Key pool fence measurements

In NSW, a pool fence must:

be at least 1.2m high (as measured from the finished ground level)

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not leave a gap at the bottom bigger than 10cm from the finished ground level

if a boundary fence is part of the pool fence, the barrier must be 1.8m high

not have gaps of more than 10cm between any vertical bars in the fence

if containing horizontal climbable bars, have these spaced at least 90cm apart

perforated or mesh barriers must have holes no greater than 13mm for fence heights of 1.2m

perforated or mesh barriers of 1.8m height with holes greater than 13mm must not exceed 100mm

The pool fence must be well maintained and in good working order

Go to the Local Government Pool Safety Booklet (http://www.sutherlandshire.nsw.gov.au/Residents/Pools-and-Spas/Pool-Safety-Requirements/Pool-Safely-Booklet) for diagrams showing these measurements and other NSW pool safety criteria.

Non-climbable zone

To prevent children climbing over fencing into the pool area, the laws require pool owners to make sure they maintain a ‘non-climbable zone’ around the pool.

any trees, shrubs or any other objects such as a barbeque, pot plants, toys, ladders and chairs must not be within the 90cm non climbable zone.

this zone is measured in an arc shape from the top of the pool fence arching towards the ground.

- it also includes the space extending 30cm inside the pool area – this space should also be cleared of any potential footholds or handholds.
- any horizontal climbable bars on the pool fence must also be spaced AT LEAST 90cm apart.

If your pool area does not meet these requirements, you can contact a licensed builder, pool technician or fencing contractor to carry out work in line with these safety requirements.

Child-resistant doors and windows

Older swimming pools might include doors or windows as part of the pool fence or barrier. This is no longer allowed.

Doors in pool barriers

If you have a door that forms part of a pool barrier you must make sure that:

- it self closes without the application of manual force
- it self latches and requires manual release
- the latching device is at least 150cm off the ground
- it has a non climbable zone of 90cm that is at least 120cm above the floor
- it does not open towards the pool
- it does not have any pet doors.

Windows in pool barriers

If you have windows that form part of a pool barrier, they must have:

- a locking device or a security screen fixed to the building that prevents them from opening more than 10cm.

If it does not satisfy this requirement, you will need to install a locking device or security screen that reduces the gap to 10cm or less.

Gate closing and latching devices

Check to ensure that your pool gate:

- is never propped open and is always kept shut
- swings outwards (away from the pool area). If it does not swing outwards, the gate must be re-hung so that it does.
- shuts automatically from any open position, without having to forcibly close it.

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- automatically locks (self-latches) when it closes.

If the gate does not shut and lock automatically, the pool gate should be permanently fastened until a new lock and closing device can be installed. Self-closing and self-latching devices can be purchased from most pool and hardware shops and can be easily installed.

Signage

Appropriate and clear warning signs must be attached to the pool fence and gate

- In case of an emergency the law requires that you have a cardiopulmonary resuscitation (CPR) sign displayed near your pool. The sign must be in good condition and able to be read easily from 3 metres.

You can buy a CPR sign from your local pool shop, council or community organisations such as St John Ambulance, the Australian Red Cross or Royal Life Saving.

Pool fence and gate maintenance

All fence bolts, screws and fasteners must be tight and in good order. Any loose bolts, screws and fasteners should be tightened or replaced. Self-closing gate hinges, locks and latches should be sprayed with lubricating oil or silicone.

Manufacturers of the pool fence and gate should provide written instructions on how to maintain your pool fence and gate. This may include the regular replacement of springs and regular spraying of self-closing gate hinges, locks and latches with lubricating oil or silicone. Proper maintenance can help to prevent many of the faults relating to self-closing and self-latching gates.

Compliance with the Building Code of Australia

Swimming pool barriers are required to meet performance requirements set out in the Building Code of Australia (BCA). From 1 September 2018 these requirements can be met using either a performance solution or a deemed-to-satisfy (DTS) solution.

A deemed-to-satisfy solution follows a set recipe of what, when and how to do something. It uses the DTS solutions from the BCA, which include materials, components, design factors, and construction methods that, if used, are deemed to meet the performance requirements.

A performance solution on the other hand is unique for an individual situation. These solutions are often flexible in achieving the outcomes and encourage innovative design and technology use.

Read more on **what this means for home owners (https://www.fairtrading.nsw.gov.au/trades-and-businesses/business-essentials/building-certifiers/practice-advice/clarifying-compliance-with-the-building-code-of-australia)**.

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